

Tentative Rulings for September 21, 2026 Department 2

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 143 8184**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2401254	CAMACHO vs BENJAMIN	MOTION TO PERMIT REMOTE DEPOSITION OF INCARCERATED DEFENDANT MITCHELL

Tentative Ruling:

Summary of Ruling:

The Court considers all of Camacho's motions on the merits despite the procedural defects in the Notices.

- (1) The Court grants the motion. The Court orders that the parties select a mutually agreeable date for Sam Mitchell's deposition to take place within 30 days from this order, and coordinate with the Facility to schedule the deposition. The Court orders that Mitchell's deposition testimony may be used only for purposes of this litigation and not publicly posted, streamed, broadcast, sold, monetized, clipped, or otherwise disseminated outside this action absent further order of the Court;
- (2) The Court grants the motion. The Court enters a protective order as follows: the native files may only be used and/or accessed by the parties and their attorneys, experts, and consultants; the native files may only be used for litigation purposes; the native files may not be published, disseminated, broadcast, sold, or licensed by any party during the litigation; all rights and/or claims of ownership of the native files are reserved by all parties; any party, expert, or consultant who accesses or uses the native files must sign an agreement to be bound to the protective order; and at the end of the litigation, whoever is determined to not be the owner of the native files must return or destroy all versions/copies of those files to the party determined to be the owner;
- (3) The Court grants the motion. The Court issues a protective order as follows: Camacho's deposition testimony, including that taken on January 29, 2026 and at any additional deposition, may be used only for purposes of this litigation and not publicly posted, streamed, broadcast, sold, monetized, clipped, or otherwise disseminated outside this action absent further order of the Court; and any written, audio, or video recordings of Camacho's deposition that have previously been publicly posted, streamed, broadcast, sold, monetized, clipped, or otherwise disseminated outside this action must be removed within 10 days of this order;
- (4) The Court grants the motion. The Court orders Camacho to produce, at his cost, all native files recovered from the damaged external drive, subject to the protective order set forth above regarding the native files. The Court orders Camacho to appear for and complete his deposition within 15 days of the production of the recovered files; and
- (5) The Court denies both parties' requests for sanctions.

Factual / Procedural Context

This is a breach of contract/defamation case. Plaintiffs Adam Camacho (“Camacho”) and Martial Science Media, LLC dba Filmgrain Studios (together “Plaintiffs”) are cinematographers. Plaintiffs allege that from April 2020 through October 2023, they entered into several oral and written contracts with Defendants Owen Benjamin (“Benjamin”), Owen Benjamin, Inc., Sam Mitchell (“Mitchell”), Corporate Bloom, Inc., Unbearables Media, LLC (“UM”), and Struggle Bear, LLC (together the “Bear Defendants”) for the production of promotional documentary videos for Bear Defendants’ Idaho campground, Beartaria, as well as tactical weapons instructional videos for Defendants Brandon Verrett and Verrett’s Tactical, LLC (“Verrett Defendants”). Plaintiffs argue that they negotiated lower rates for the videos because Defendants promised additional work and future royalties. Plaintiffs assert that they completed all work on the projects, but Defendants failed to pay in full and negotiated reduced payments. Plaintiffs allege that after they refused the new contract prices offered by Defendants, Defendants began a public campaign of slander and libel on various social media platforms accusing Plaintiffs of theft, extortion, gifting, stealing and robbery.

On March 7, 2024, Plaintiffs filed the Complaint. The operative Fourth Amended Complaint (“4AC”) was filed on March 26, 2025 and asserts fifteen causes of action for: (1) Breach of Contract; (2) Common Count: Reasonable Value of Work, Labor, and Services (Quantum Meruit); (3) Common Count: Work, Labor, Services and Materials; (4) Unjust Enrichment; (5) Fraud: Intentional Misrepresentation; (6) Fraud: Negligent Misrepresentation; (7) Fraud: Suppression of Facts; (8) Fraud: Promise Made Without Intention to Perform; (9) Libel: Imputation of Crime; (10) Libel: Imputation of Immoral Conduct; (11) Libel: Imputation of Dishonesty; (12) Libel: Exposing Plaintiffs to Contempt and Ridicule; (13) Slander: Accusation of Crime; (14) Slander: Tendency to Injure Occupation; and (15) Conversion.

On September 16, 2025, Benjamin, Mitchell and Unbearables, Media (“Cross-Complainants”) filed a Cross-Complaint against Plaintiffs asserting six causes of action for: (1) Breach of Contract; (2) Breach of Implied Covenant of Good Faith and Fair Dealing; (3) Conversion; (4) Promissory Fraud; (5) Libel Per Se; and (6) Slander Per Se.

On January 2, 2026, Benjamin served a notice of deposition on Camacho, along with a demand for production of, among other things, “all native project files (including video, audio, image, or project files)” for work Camacho performed for Bear Defendants (the “native files”), setting his deposition for January 29, 2026. In January 2026, Camacho produced seven video files, totaling approximately 49 hours of material, with a visible watermark that states “For Legal Purposes Only – Not For Publication.” He did not provide any files without a watermark. Camacho appeared for deposition on January 29, 2026, but it was not completed that day. On February 13, 2026, UM served a notice for Camacho’s continued deposition to take place on April 20, 2026. UM also requested production of the native files. The date was chosen unilaterally, and the continued deposition never occurred.

In February 2026, Bear Defendants uploaded Camacho’s deposition testimony to ladle.tv, a paid subscription platform. Camacho requested that Bear Defendants take down

the video, but they refused, and multiple video segments of the deposition remain on ladle.tv.

Defendant Mitchell is currently in custody at the Miami Correctional Facility in Bunker Hill, Indiana (the "Facility"). On July 15, 2026, Camacho served a notice of Mitchell's remote deposition for August 12, 2026. On July 23, 2026, the Facility notified Camacho that a court order is necessary for the deposition of a detainee.

The Court conducted Informal Discovery Conferences ("IDC") on June 12, 2026 and July 24, 2026, but discovery issues remain. These motions followed. Bear Defendants filed an *ex parte* application for interim orders pending the hearings on the current motions. On August 11, 2026, the Court ordered that Camacho ship, at his cost, 2 external storage drives to "Salvage Data" for preservation and recovery services within 10 court days, and upon receiving the external storage drives back from Salvage Data, to preserve the materials and provide the original files, without watermarks, to defense counsel within 10 days. Camacho shipped the storage devices to Salvage Data, and on August 27, 2026, he received an evaluation report stating that one of the devices was damaged to the extent that data was not recoverable, while the data on the other device "appears to be recoverable" at a cost of \$3,397.

Motion to Compel Remote Deposition of Mitchell

Camacho moves for an order: compelling the remote deposition of Mitchell from the Facility where he is being detained, in a form the Facility will accept; requiring the Bear Defendants to provide Camacho with Mitchell's detainee identifying number, which is required to schedule the deposition; and directing the parties to coordinate a mutually available date for Mitchell's deposition with the Facility's scheduling officer.

In their limited opposition, the Bear Defendants state that they do not oppose the deposition, they were cooperating before the motion was filed, and there has been no failure to appear, so the motion is improper. They also argue that notice of the motion is defective because it does not comply with CRC 3.1110(b)(1). Bear Defendants go on to state that since the Facility requires an order for the deposition, they do not object to an order compelling the deposition under conditions approved by the Facility. They seek a narrow protective order preventing Camacho from publishing Mitchell's deposition pursuant to C.C.P. §§ 2025.420(b)(5) & (8), 2025.570.

In reply, Camacho argues that the notice defects are not grounds for denial; the motion is not premature; and the order is required by the Facility. He notes that Bear Defendants do not oppose the relief sought, and states that he does oppose an order prohibiting the publication of Mitchell's deposition, but asks that it be mutual (as requested in his motion for a protective order).

Motion for Protective Order Re: Native Files

Camacho moves for a protective order governing the production of the unwatermarked native files, arguing that ownership of the native files is at issue in this lawsuit, and Bear Defendants have already published his deposition for profit on a paid platform, so good cause exists for a protective order making the native files for attorneys' eyes only, to be used only in litigation, to be returned or destroyed at the end of the litigation, and with no waiver of ownership rights.

In opposition, Bear Defendants argue that the motion should be denied because Camacho seeks to impose restrictions on native footage that he does not own, and much of which he has already destroyed. They also argue that the attorneys' eyes only designation is improper because UM and Benjamin own the files and need access to them to assist their counsel, and any protective order should apply equally to all parties, permit full use of the native files in litigation, and reserve all rights to ownership.

In reply, Camacho states that he agrees to the terms proposed by Bear Defendants, i.e., mutual application of the protective order; full use of the native files in litigation; a reservation of all rights to ownership; and no attorneys' eyes only designation. He argues, however, that additional terms are necessary re: prohibiting publication/dissemination outside the litigation and requiring the return or destruction of the files at the end of the case.

Motion for Protective Order Re: Publication of Camacho's Deposition

Camacho also moves for a protective order requiring that the video recording of his January 29, 2026 deposition be removed from all public and subscription platforms and prohibiting Defendants from any further publication or dissemination of his deposition testimony, arguing that good cause for the order exists because Bear Defendants are commercially exploiting his testimony and refuse to remove the videos.

In opposition, Bear Defendants argue that the motion should be denied because Camacho has continuously made this matter public, he fails to identify any confidential or private information, and absent a court order to the contrary, the fruits of pretrial discovery are public. They also argue that the notice is procedurally defective, Camacho did not meet and confer in good faith, and he did not move for the protective order promptly. Finally, they argue that Camacho's request that the court prohibit publication of the contents of his deposition testimony is unconstitutionally and statutorily overbroad.

In reply, Camacho acknowledges that prohibiting publication of the contents of his deposition testimony is too broad. He now asks for an order that his deposition testimony "be used only for purposes of this litigation and not publicly posted, streamed, broadcast, sold, monetized, clipped, or otherwise disseminated outside this action absent further order of the Court, with an express exception for material that becomes part of the public judicial record." He notes that Bear Defendants seek the exact same relief regarding Mitchell's deposition, and he does not oppose that relief. He argues that public statements about this dispute do not defeat his right to protection here. Finally, he argues that, contrary to Bear Defendants statements, the deposition testimony does contain private information, including

his address and 4 email addresses, as well as the phone number and email address of non-parties.

Motion to Compel Plaintiff's Deposition and Production of Native Files

Bear Defendants move for an order compelling Camacho to appear for and complete his deposition, produce the native files, and pay sanctions in the amount of \$15,720. They argue that the raw footage captured by Camacho is the subject of this litigation, and he has produced none of it, despite discovery requests from Bear Defendants. They contend Camacho publicly stated in 2023 that he had all of the footage but now claims it has been lost or damaged. At the IDCs, the court ordered that Camacho produce the footage and then complete his deposition, but he has not done so.

In opposition, Camacho states that he does not oppose producing the native files, but seeks to do so pursuant to a protective order, which is the subject of one of his motions set for today. He argues that the protective order proposed by Bear Defendants was missing necessary language, which is why the production is delayed. He also argues that he produced 49 hours of footage and Bear Defendants are the ones who cancelled his deposition. Camacho also contends that his 2023 statements that he had all the footage were true at the time, but that the files have since been damaged. He further argues that, as stated in his Sworn Accounting, filed 8/7/26, he shipped the damaged storage drives to a data recovery engineer; was told the files from one of the drives were unrecoverable, while files on the other drive could be recovered for \$3,397, which he cannot afford; the data recovery engineer is attempting to recover those files now. Bear Defendants have failed to establish good cause for Camacho to incur the cost of recovering and producing the native files, and monetary sanctions are inappropriate.

Analysis

I. Notice Defects

Bear Defendants object to each of Camacho's motions on the grounds that they are defective because they do not comply with CRC, Rule 3.1110 and Riverside Local Rule 3316. California Rules of Court, Rule 3.1110(b)(1) states the notice must contain "the date, time, and location, if ascertainable, of any scheduled hearing ..." (CRC 3.1110(b)(1).) Each of the notices contain the date, time, and location of the hearing, so they are sufficient to comply with CRC Rule 3.1110(b). Riverside Superior Court Local Rule 3316 states that for all motions in departments that issue tentative rulings, the notice of motion must include specific language regarding when the tentative ruling will be issued and how to proceed. (Riverside Local Rule 3316(c).) There is no dispute that none of Camacho's notices contain this information. When challenging the motion on procedural defect such as insufficient notice, opposing counsel could request a continuance at the hearing to allow for a proper response to the motion, making a record as to the inadequate notice or defective service. (See *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697-698.) However, challenging the motion on the merits rather than only objecting to the inadequate notice may constitute a waiver of any objection to the moving party's failure to comply with the notice requirement.

(See, *Clark v. Stabond Corp.* (1987) 197 Cal.App.3d 50, 59.) Here, Bear Defendants argue the notices are procedurally defective, but also oppose their merits, and make no request to continue the hearing. Thus, they waived their objection to the notice issue. Furthermore, there is no prejudice to Bear Defendants from the defective notice. Accordingly, the Court allows the hearing on Camacho's motions to proceed on their merits.

II. Motion to Compel Remote Deposition of Mitchell

Any party may obtain discovery by taking the deposition of any person, including a party to the action. (C.C.P. § 2025.010.) In general, a notice of deposition is sufficient to compel a party to appear at deposition and to produce documents. (C.C.P. §2025.280(a).) Pursuant to C.C.P. §2025.450(a), where a party fails to appear, without a valid objection, the party giving notice of the deposition may move for an order compelling attendance, testimony, and the production of documents. The motion must show good cause and be accompanied by a meet and confer declaration under C.C.P. §2016.040. (C.C.P. §2025.450(b).)

Here, Camacho noticed Mitchell's remote deposition for August 12, 2026, and was thereafter advised by the Facility that a court order is required for any deposition of a detainee. (Decl. of Adam Camacho ["Camacho Decl."] at ¶¶ 2-4, Ex. A.) Camacho submits evidence that he met and conferred with Bear Defendants before filing this motion. Furthermore, while it is unclear if there was a failure to appear without a valid objection, it is clear that a court order is required before Mitchell's deposition may proceed. (Camacho Decl. at ¶¶ 3-4, Ex. A.) As Mitchell is a Defendant in this case, and has knowledge relevant to the underlying issues, there is good cause to issue an order compelling his deposition.

Accordingly, the motion is granted, and the Court orders that the parties select a mutually agreeable date for Mitchell's deposition to take place within 30 days from this order, and coordinate with the Facility to schedule the deposition.

Bear Defendants request, and Camacho does not oppose, an order prohibiting Mitchell's deposition testimony from being publicly posted. Accordingly, the Court also orders that Mitchell's deposition testimony may be used only for purposes of this litigation and not publicly posted, streamed, broadcast, sold, monetized, clipped, or otherwise disseminated outside this action absent further order of the Court.

III. Protective Orders

A. Standard

"Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order." (C.C.P. § 2025.420(a).) A party may also move for a protective order regarding RFPs. (C.C.P. § 2031.060(a).) "The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or any other affected natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (*Id.* at § 2025.420(b).) The moving party has the burden of establishing good cause for a protective order. (*Nativi v. Deutsche Bank National Trust Co.*) (2014) 223Cal.App.4th 261,

318; *Fairmont Ins. Co. v. Sup. Ct.* (2000) 22 Cal.4th 245, 255.) “[B]road allegations of harm, unsubstantiated by specific examples or articulated reasoning” are insufficient. (*Nativi, supra*, 223Cal.App.4th at 318 [internal quotation marks and quotation omitted].) “The concept of good cause . . . calls for a factual exposition of a reasonable ground for the sought order.” (*Tanguilig v. Valdez* (2019) 36 Cal.App.5th 514, 528.)

The issuance and formulation of protective orders are to a large extent discretionary, and ruling on motions for protective orders will not be disturbed absent an abuse of discretion. (*Nativi, supra*, 223Cal.App.4th at 316-317.) The trial court considering a protective order is in the best position to weigh fairly the competing needs and interests of parties affected by discovery. (*Id.* at 317.)

B. Native Files

In Benjamin’s January 2, 2026 deposition notice to Camacho, he requested, among other documents, production of all native files for work Camacho performed for Bear Defendants. (Decl. of David Hakimfar iso Motion to Compel [“Hakimfar Decl.”] at ¶ 3, Ex. A.) UM also requested the native files. (Hakimfar Decl. at ¶ 4-5.) In January 2026, Camacho produced seven video files, totaling approximately 49 hours of material, with a visible watermark that states “For Legal Purposes Only – Not For Publication.” (Decl. of Adam Camacho iso Opposition to Bear Defendants’ Motion to Compel [“Camacho Decl.”] at ¶ ¶ 17.) There is no dispute that he did not produce the native files without watermarks (which is addressed in Bear Defendants’ motion below).

Camacho now seeks a protective order allowing him to produce the native files without watermarks subject to a protective order that is applicable to all parties, and provides as follows: the files may only be used for litigation purposes; they may not be published, disseminated, broadcast, sold, or licensed; they must be returned or destroyed at the end of the litigation; all rights and/or claims of ownership of the native files are reserved; and any party, expert, or consultant who accesses or uses the native files must sign an agreement to be bound to the protective order.

A large part of the present case rests on a dispute over ownership of the native files. This alone provides good cause for prohibiting parties from publishing the files during the pendency of the lawsuit. Additionally, Camacho presents evidence that Bear Defendants have already published his deposition on a paid platform [Camacho Decl. at ¶ 4], which supports Camacho’s concern that Bear Defendants will also publish the native files. Accordingly, there are sufficient grounds for the protective order sought by Camacho, and the motion is granted. The Court enters the following protective: the native files may only be used and/or accessed by the parties and their attorneys, experts, and consultants; the native files may only be used for litigation purposes; the native files may not be published, disseminated, broadcast, sold, or licensed by any party during the litigation; all rights and/or claims of ownership of the native files are reserved by all parties; any party, expert, or consultant who accesses or uses the native files must sign an agreement to be bound to the protective order; and at the end of the litigation, whoever is determined to not be the owner of the native files must return or destroy all versions/copies of those files to the party determined to be the owner.

C. Publication of Camacho's Deposition

Bear Defendants first argue that Camacho's motion regarding the publication of his deposition testimony should be denied because he did not meet and confer in good faith, and did not file the motion promptly. They acknowledge, however, that Camacho requested that they remove the publication, and Benjamin refused. (Opposition, p. 4:5-8.) The issue was also discussed at an IDC. This is sufficient to meet Camacho's statutory burden to meet and confer. As to the promptness of the motion, Bear Defendants are correct that Camacho waited several months to file the motion. While he clearly could have made the motion sooner, the only harm in his waiting was to himself, in allowing the videos to remain uploaded for a longer time. Camacho's delay in filing the motion does not provide sufficient grounds for denial.

As to the merits of the motion, there is no dispute that Bear Defendants published Camacho's deposition testimony to ladle.tv, a paid subscription channel. (Decl. of Adam Camacho iso Motion for Protective Order re: Deposition ["Camacho Decl."] at ¶¶ 3-6, Exs. A, C.) The title of one of the videos of Camacho's deposition is titled "A Deposition Disaster and Close Call in West Palm." (*Ibid.*) Furthermore, Benjamin made statements on ladle.tv stating, among other things: "I uploaded all of his deposition... now that I have six hours of uninterrupted testimony from the guy that's suing me at ladle TV... And I've paid for that production," and "Adam joining ladle to order you to cease and desist... I cut that on ladle... So every time you Google Adam Camacho, it's a 4.5 hour testimony deposition of him..." (Camacho Decl., Ex. A, C-E.) This evidence at least strongly suggests that the purpose of uploading the deposition testimony was to cause "unwarranted annoyance, embarrassment, or oppression." (*Id.* at § 2025.420(b).) Furthermore, Camacho presents evidence that, contrary to Bear Defendants claims that they removed all private information, the videos include personal information of both himself and third parties. (Supp. Decl. of Adam Camacho at ¶¶ 2-7.) Thus, Camacho has established there is good cause for the protective order sought. Accordingly, the Court grants the motion and issues the following protective order: (1) Camacho's deposition testimony, including that taken on January 29, 2026 and at any additional deposition, may be used only for purposes of this litigation and not publicly posted, streamed, broadcast, sold, monetized, clipped, or otherwise disseminated outside this action absent further order of the Court; and (2) any written, audio, or video recordings of Camacho's deposition that have previously been publicly posted, streamed, broadcast, sold, monetized, clipped, or otherwise disseminated outside this action must be removed within 10 days of this order.

IV. Motion to Compel Plaintiff's Deposition and Production of Native Files

Bear Defendants move to compel Plaintiff to attend and complete his deposition and produce the native files requested in their deposition notices.

On January 2, 2026, Benjamin served Camacho with a notice of his deposition for January 29, 2026, and requested documents including the native files. (Decl. of David Hakimfar ["Hakimfar Decl."] at ¶ 3, Ex. A.) Camacho was deposed on January 29, 2026, but his deposition was not completed. (Decl. of Adam Camacho ["Camacho Decl."] at ¶ 2.) On February 13, 2026, UM noticed his deposition for April 20, 2026, it was rescheduled multiple times due to unavailability of the parties, but it was never completed. (Camacho Decl. at ¶¶

3-10.) Pursuant to C.C.P. §2025.450(a)-(b), the Court orders and compels Camacho to attend and complete his deposition, subject to the protective order discussed above that his testimony cannot be used other than for litigation purposes.

Regarding the native files, Camacho produced seven video files, totaling approximately 49 hours of material in January 2026. However, these files had a visible watermark that states “For Legal Purposes Only – Not For Publication.” (Decl. of Adam Camacho in Opposition to Bear Defendants’ Motion to Compel [“Camacho Decl.”] at ¶¶ 17.) Bear Defendants seek production of the files without the watermark, which they are entitled to (subject to the protective order set forth above). Camacho presents evidence that the files were stored in compressed form on his Apple MacBook Pro laptop computer; that laptop was damaged in a water intrusion event on May 21, 2026, and removed during demolition and remediation; and he has been unable to locate the laptop since the water event, despite searching storage units and asking the remediation contractor who removed the contents of the damaged area, so he cannot simply produce the same files without the watermark. (Camacho Decl. at ¶¶ 24-28.) He presents further evidence that he has two external hard drives that were damaged in the same water intrusion event; he shipped the storage devices to Salvage Data as ordered by the Court; on August 27, 2026, he received an evaluation report stating that one of the devices was damaged to the extent that data was not recoverable, while the data on the other device “appears to be recoverable” at a cost of \$3,397; and Salvage Data began the recovery process on the salvageable drive on September 2, 2026; and Salvage Data began the recovery process on the salvageable drive on September 2, 2026. (Camacho Decl. at ¶¶ 32-46.)

While Camacho argues that he cannot afford to pay to have the files recovered from the salvageable drive, the Court has already ordered that Camacho is responsible for the cost of recovery. (See, 8/11/26 Minute Order.) This is because the files, which are the subject of this action, were damaged while in Camacho’s possession, long after they had been properly requested by Bear Defendants. Accordingly, Camacho is ordered to produce all native files recovered from the damaged external drive, at his cost. The files shall be produced subject to the protective order set forth above regarding the native files.

Both parties seek sanctions in connection with their motions. However, as there were genuine disputes regarding how the documents and deposition testimony could be used, and none of the parties seem to be acting entirely in good faith, both requests for sanctions are denied.

Rulings:

The Court considers all of Camacho’s motions on the merits despite the procedural defects in the Notices.

- (1) The Court grants the motion. The Court orders that the parties select a mutually agreeable date for Sam Mitchell’s deposition to take place within 30 days from this order, and coordinate with the Facility to schedule the deposition. The Court orders that Mitchell’s deposition testimony may be used only for purposes of this litigation and not publicly posted, streamed, broadcast, sold, monetized, clipped, or otherwise disseminated outside this action absent further order of the Court;

- (2) The Court grants the motion. The Court enters a protective order as follows: the native files may only be used and/or accessed by the parties and their attorneys, experts, and consultants; the native files may only be used for litigation purposes; the native files may not be published, disseminated, broadcast, sold, or licensed by any party during the litigation; all rights and/or claims of ownership of the native files are reserved by all parties; any party, expert, or consultant who accesses or uses the native files must sign an agreement to be bound to the protective order; and at the end of the litigation, whoever is determined to not be the owner of the native files must return or destroy all versions/copies of those files to the party determined to be the owner;
- (3) The Court grants the motion. The Court issues a protective order as follows: Camacho's deposition testimony, including that taken on January 29, 2026 and at any additional deposition, may be used only for purposes of this litigation and not publicly posted, streamed, broadcast, sold, monetized, clipped, or otherwise disseminated outside this action absent further order of the Court; and any written, audio, or video recordings of Camacho's deposition that have previously been publicly posted, streamed, broadcast, sold, monetized, clipped, or otherwise disseminated outside this action must be removed within 10 days of this order;
- (4) The Court grants the motion. The Court orders Camacho to produce, at his cost, all native files recovered from the damaged external drive, subject to the protective order set forth above regarding the native files. The Court orders Camacho to appear for and complete his deposition within 15 days of the production of the recovered files; and
- (5) The Court denies both parties' requests for sanctions.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2401254	CAMACHO vs BENJAMIN	MOTION FOR LEAVE TO FILE FIFTH AMENDED COMPLAINT

Tentative Ruling:

See #1 above

3.

CASE #	CASE NAME	HEARING NAME
CVRI2401254	CAMACHO vs BENJAMIN	MOTION FOR PROTECTIVE ORDER RE NATIVE FOOTAGE PRODUCTION

Tentative Ruling:

See #1 above

4.

CASE #	CASE NAME	HEARING NAME
CVRI2401254	CAMACHO vs BENJAMIN	MOTION FOR PROTECTIVE ORDER RE PUBLICATION OF DEPOSITION RECORDING

Tentative Ruling:

See #1 above

5.

CASE #	CASE NAME	HEARING NAME
CVRI2401254	CAMACHO vs BENJAMIN	MOTION TO BE RELIEVED AS COUNSEL FOR MARTIAL SCIENCE MEDIA, LLC

Tentative Ruling:

See #1 above

6.

CASE #	CASE NAME	HEARING NAME
CVRI2401254	CAMACHO vs BENJAMIN	MOTION TO COMPEL

Tentative Ruling:

See #1 above

7.

CASE #	CASE NAME	HEARING NAME
CVRI2406672	SOLIZ vs BRIDGEWATER	MOTION TO COMPEL FURTHER DISCOVERY RESPONSES

Tentative Ruling:

Matter continued to 10/27/26

8.

CASE #	CASE NAME	HEARING NAME
CVRI2406672	SOLIZ vs BRIDGEWATER	MOTION TO COMPEL FURTHER DISCOVERY RESPONSES

Tentative Ruling:

Matter continued to 10/27/26

9.

CASE #	CASE NAME	HEARING NAME
CVRI2601841	GATES vs SABER FITNESS RIVERSIDE, LLC	MOTION TO QUASH DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS DIRECTED TO ALLIED UNIVERSAL SECURITY SERVICES

Tentative Ruling:

Matter continued to 9/30/26

10.

CASE #	CASE NAME	HEARING NAME
CVRI2601841	GATES vs SABER FITNESS RIVERSIDE, LLC	MOTION TO QUASH DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS DIRECTED TO OMNITRANS

Tentative Ruling:

Matter continued to 9/30/26

11.

CASE #	CASE NAME	HEARING NAME
CVRI2601841	GATES vs SABER FITNESS RIVERSIDE, LLC	MOTION TO QUASH DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS DIRECTED TO INTER-CON SECURITY SYSTEMS, INC.

Tentative Ruling:

Matter continued to 9/30/26